

Another fault in the return is, that the jurors are not said to have acquitted the persons indicted, against full and manifest evidence corruptly, and knowing the said evidence to be full and manifest against the persons indicted, for how manifest soever the evidence was, if it were not manifest to them, and that they believ'd it such, it was not a finable fault, nor deserving [141] imprisonment, upon which difference the law of punishing jurors for false verdicts principally depends.

A passage in Bracton is remarkable to this purpose concerning attainting inquests. *Committit Jurator per jurium propter falsum Sacramentum, ut si ex certa scientia aliter Juraverit quam res in veritate se habuerit, si autem Sacramentum fatuum fuerit licet falsum, tamen non committit perjurium licet re vera res aliter se habeat quam juraverat, & quia jurat secundum conscientiam eo quod non vadit contra mentem. Sunt quidam qui verum dicunt. mentiendo, sed se pejerant—quia contra mentem vadunt.*

The same words, and upon the same occasion, are in effect in Fleta. *Committit enim Jurator perjurium quandoque propter falsum Sacramentum, ut si ex certa scientia aliter juraverit quam res in veritate se habuerit secus enim propter factum quamvis falsum; and lest any should think that these passages are to be understood only of jury-mens perjuries in foro conscientie, it is clearly otherwise by both those books, which shew how, by the discreet examination of the Judge, the error of the jury not wilfull, may be prevented and corrected, and their verdict rectified.*

And in another place of Bracton, in the same chapter: *Judex enim sive Justiciarius ad quem pertinet examinatio, si minus diligenter examinaverit, occasionem prebet perjurii Juratoribus.* And after,

*Et si examinati cum justo deducantur errore dictum suum emendaverint, hoc bene facere possunt, ante judicium & impune, sed post judicium non sine poenâ.*

After these authorities,

I would know whether any thing be more common, than for two men students, barristers, or Judges, to deduce contrary and opposite conclusions out of the same case in law? And is there any difference that two men should inferr distinct conclusions from the same testimony: Is any thing more known than that the same author, and place in that author, is forcibly urg'd to maintain contrary conclusions, and the decision hard, which is in the right? Is any thing more frequent in the controversies of religion, than to press the same text for opposite tenents? How then comes it to pass that two persons may not apprehend with reason and honesty, what a witness, or many, say, to prove in the understanding of one plainly one thing, but in the apprehension of the other, clearly [142] the contrary thing: must therefore one of these merit fine and imprisonment, because he doth that which he cannot otherwise do, preserving his oath and integrity? And this often is the case of the Judge and jury.

I conclude therefore, that this return, charging the prisoners to have acquitted Penn and Mead, against full and manifest evidence first and next, without saying that they did know and believe that evidence to be full and manifest against the indicted persons, is no cause of fine or imprisonment.

And by the way I must here note, that the verdict of a jury, and evidence of a witness are very different things, in the truth and falshood of them: a witness swears but to what he hath heard or seen, generally or more largely, to what hath fallen under his senses. But a jury-man swears to what he can inferr and conclude from the testimony of such witnesses, by the act and force of his understanding, to be the fact inquired after, which differs nothing in the reason, though much in the punishment, from what a Judge, out of various cases consider'd by him, inferrs to be the law in the question before him. Therefore Bracton,

*Et licet narratio facti contraria sit Sacramento, & dicto præcedenti, tamen falsum non faciunt Sacramentum licet faciunt fatuum Judicium, quia loquuntur secundum conscientiam quia falli possunt in Judiciis suis, sicut ipse Justitiarius.*

There is one objection which hath been made by none, as I remember, to justify this general return, I would give answer to.

A man committed for treason or felony, and bringing a habeas corpus, hath return'd upon it, that he was committed for high treason or felony; and this is a sufficient return to remand him, though in truth this is a general return: for if the specifical fact for which the party was committed, were expressed in the warrant, it might then perhaps appear to be no treason or felony, but a trespass, as in the case of *The Earl of Northumberland*, 5 H. 4, question'd for treason in raising power. The